

STATE OF MICHIGAN
IN THE THIRD JUDICIAL CIRCUIT FOR THE COUNTY OF WAYNE
FAMILY DIVISION, DOMESTIC RELATIONS

ADRIENNE MARJORIE ROCKENHAUS,
Plaintiff/Counter-Defendant,

v.

CONRAD ALAN ROCKENHAUS,
Defendant/Counter-Plaintiff.

Case No. **26-104594-DO**

Hon. **Nicole N. Goodson**

**DEFENDANT/COUNTER-PLAINTIFF'S EMERGENCY MOTION FOR PRESERVATION
ORDER AND ORDER PROHIBITING SPOILIATION OF EVIDENCE**

NOW COMES Defendant/Counter-Plaintiff Conrad Alan Rockenhaus, appearing pro se, and respectfully moves this Honorable Court on an emergency basis, pursuant to MCR 3.310, MCR 2.310, MCR 2.302, and the Court's inherent equitable authority, for entry of a Preservation Order and an Order Prohibiting Spoliation of Evidence directed to Plaintiff/Counter-Defendant Adrienne Marjorie Rockenhaus. In support, Defendant/Counter-Plaintiff states as follows.

LCR 2.119(B) COMPLIANCE

1. The undersigned hereby certifies, pursuant to LCR 2.119(B)(1), that he has complied with all provisions of LCR 2.119(B) on motion practice. Specifically, and pursuant to LCR 2.119(B)(2), undersigned requested concurrence of counsel for Plaintiff/Counter-Defendant in the relief sought herein on May 12, 2026, by electronic transmission to Lisa Baker, Esq. (P82555), Aldrich Legal Services, PLLC. Given the emergency nature of the relief sought, the time-sensitive predicate set forth in §III below, and the fact that the underlying spoliation-risk conduct has been ongoing since at least May 9, 2026, concurrence was requested on a shortened response window with a response cutoff of 1:00 PM EDT, Wednesday, May 13, 2026. Concurrence was not received within the requested response window and is therefore deemed denied for purposes of LCR 2.119(B)(2). It is therefore necessary to present this motion.

I. PROCEDURAL BACKGROUND

2. Plaintiff/Counter-Defendant Adrienne Marjorie Rockenhaus filed her Verified Complaint for Divorce in this Court on April 9, 2026.
3. Defendant/Counter-Plaintiff Conrad Alan Rockenhaus filed and served his Answer to Verified Complaint for Divorce, Affirmative Defenses, and Counterclaim ("Counterclaim") on April 15, 2026.
4. On May 12, 2026, the Clerk of this Court entered default of Plaintiff/Counter-Defendant on the Counterclaim pursuant to MCR 2.603(A), on the predicate that Plaintiff/Counter-Defendant failed to plead within the 21-day period prescribed by MCR 2.108(A)(4).
5. Defendant/Counter-Plaintiff filed a Motion for Default Judgment on Counterclaim under MCR 2.603(B)(3) on May 12, 2026. The seven-day notice period under MCR 2.603(B)(1)(b) is running.
6. The factual averments of the Counterclaim are deemed admitted by operation of the rule. MCR 2.603(A). Those averments include allegations of conversion of approximately \$26,837.87 in diverted VA Disability Compensation, fiduciary breach by Plaintiff/Counter-Defendant in her capacity as Defendant's Social

Security Administration Representative Payee, unauthorized access to Defendant's va.gov account using Defendant's id.me credentials, retention of Defendant's personal property including computing devices, and operation of online accounts used to harass Defendant and his witnesses.

7. The deemed-admitted record now in place gives Plaintiff/Counter-Defendant an affirmative incentive to destroy, alter, conceal, or transfer the evidence on which the damages and equitable-relief calculations in Defendant's Counterclaim depend. The conduct described in §III below indicates that destruction, alteration, concealment, or transfer is not speculative but imminent.

II. THE RELIEF ALREADY PENDING AND THE NEED FOR A STANDALONE PRESERVATION ORDER

8. The Court has before it Defendant's previously filed Omnibus Motion, Part One of which requested a generalized Preservation Order over eight categories of evidence (Categories A through H), supported by *Teel v. Meredith*, 284 Mich App 412 (2009). That Omnibus Motion has not yet been heard.
9. The relief sought by this Emergency Motion differs from the relief sought by Part One of the Omnibus Motion in three material respects:
 - a. The Omnibus Motion's preservation request was prophylactic, addressed to evidence whose continued existence was assumed pending discovery. This Emergency Motion is responsive to specific evidence that preservation is actively at risk, predicated on the post-Omnibus factual record set forth in §III.
 - b. The Omnibus Motion's preservation request issued in the discovery context under MCR 2.310. This Emergency Motion seeks injunctive relief under MCR 3.310 and the Court's inherent equitable authority, on an expedited timeline that the discovery-track Omnibus cannot supply.
 - c. The Omnibus Motion did not encompass several categories of electronic evidence that have come into focus since April 15, 2026, including the eleven-handle X/Twitter sockpuppet network operationally controlled by Plaintiff/Counter-Defendant, the cross-platform witness-intimidation infrastructure surfaced in May 2026, and the compromised iCloud account at conrad@cannabytes.net registered to an Apple AirTag used in the documented cyberstalking conduct described at §III.E below.
10. The two preservation requests are complementary and not duplicative. The Omnibus Motion remains pending for hearing on its original terms and supplies the broader prophylactic preservation framework. This Emergency Motion supplies the immediate, time-sensitive, injunction-track preservation framework necessitated by the specific factual predicate that follows.

III. FACTUAL EMERGENCY PREDICATE

A. Plaintiff/Counter-Defendant Has Vacated the Marital Residence Without Forwarding Information

11. On the evening of Saturday, May 9, 2026, eyewitness Ann Helgren observed an unknown male arrive at 26695 Ross Drive, Redford, Michigan in a white Ford F-250 Super Duty pickup truck bearing Michigan license plate 7RBK87 and load household property from the residence into the truck bed.
12. On the evening of Sunday, May 10, 2026, eyewitness Pam Jordan observed Plaintiff/Counter-Defendant return to the same residence with additional individuals to remove further household property.
13. Eric of EJK Group LLC, the landlord of record for the 26695 Ross Drive lease (Term September 1, 2025 to August 31, 2026), has independently informed Defendant that Plaintiff/Counter-Defendant communicated to him she was "leaving town," with no destination provided, no name of any person who would watch the property, and no return date.
14. The eyewitness identifications, photographic vehicle identification, and landlord statement are documented in the case record and have been supplied to the Redford Township Police Department under Case No. 26-7649 (Co-Response Clinician Sonia McCain, assigned).
15. As of the filing of this Motion, Plaintiff/Counter-Defendant's current physical whereabouts are unknown to Defendant.

B. Pattern of Property Removal and Concealment

16. The two-trip extraction pattern observed on May 9 and May 10, 2026, is operationally consistent with a planned departure from the marital residence rather than a temporary absence. The pattern is corroborated by the landlord's statement at ¶13 above and by Plaintiff/Counter-Defendant's communicated absence of any forwarding information.
17. Among the property removed by Plaintiff/Counter-Defendant from the residence, on information and belief, are or were Defendant's personal property items separately the subject of Defendant's pending Motion for Return of Personal Property filed May 7, 2026, including Defendant's Apple Mac Mini, Apple iPhone 16e, Apple iPhone 15 Pro Max, Apple iPad, Apple Watch, and Defendant's wallet (the wallet being the subject of the AirTag-cyberstalking findings at §III.E below).
18. The Mac Mini, iPhone 15 Pro Max, iPhone 16e, and iPad each contain or may contain electronic evidence directly material to the deemed-admitted Counterclaim, including but not limited to communications between Plaintiff/Counter-Defendant and third parties regarding Defendant's VA and SSDI benefits, records of Plaintiff/Counter-Defendant's access to Defendant's va.gov and id.me accounts, records of social-media activity from accounts operationally controlled by Plaintiff/Counter-Defendant, and Cannabytes, LLC business records.

C. Identified Conduit for Concealment

19. On May 11, 2026, eyewitness Ann Helgren disclosed to Defendant her belief that the male individual observed loading property at 26695 Ross Drive on May 9, 2026, was an associate of Robert Hein, Plaintiff/Counter-Defendant's nephew and the sole family member with whom Plaintiff/Counter-Defendant maintains regular contact.
20. Robert Hein additionally serves as trustee of distributions from a trust established by Plaintiff/Counter-Defendant's deceased mother, from which Plaintiff/Counter-Defendant receives monthly distributions of approximately \$2,000.00. The trust income, on Defendant's information and belief, was not disclosed by Plaintiff/Counter-Defendant on her Verified Financial Information Form filed under MCR 3.206(C).
21. The combination of the Robert Hein conduit identification and the undisclosed trust-income stream materially raises the risk that Plaintiff/Counter-Defendant has moved, or will move, personal property and electronic devices containing material evidence to a location and into a possessory arrangement insulated from Defendant's ability to identify, locate, or compel production.

D. Electronic Account Inventory at Imminent Spoliation Risk

22. Plaintiff/Counter-Defendant operationally controls a substantial inventory of electronic accounts at platforms whose retention policies provide for routine deletion of content on user instruction and frequently after only short retention windows. The accounts identified to Defendant's knowledge include the following:
 - a. Email accounts: adrienne@cannabytes.net (her email of record in this proceeding) and adrienne@rockenhaus.com.
 - b. iCloud account: conrad@cannabytes.net, an iCloud account registered in Defendant's name to the cannabytes.net domain that Plaintiff/Counter-Defendant administratively controls, and to which the Apple AirTag described at §III.E is paired and registered.
 - c. X (formerly Twitter) primary account: @adezero.
 - d. X (formerly Twitter) accounts operationally controlled by, coordinated with, or systematically amplifying content from Plaintiff/Counter-Defendant. The accounts identified on Defendant's direct personal knowledge as sockpuppet accounts controlled by Plaintiff/Counter-Defendant are: @spuntpatrol, @LeighCheri_, @phatadvert, @AllysonClermont, @4chantress, @alg0queen, @LuceMargarita, @blackjakkkk, @PunkyHomegirl, @picklepickleg, and @p1ratech. The accounts identified through the documentary record set forth at §III.G below as operating in coordination with Plaintiff/Counter-Defendant are: @rosebuttcheeks

(display name "Rosemary"), and @JustCallMeJoeP (display name "Joe Prich").

e. Facebook accounts operating under the names "Demi-Jo Matthews," "Sherri Adair," and "Jenn Reede." The "Demi-Jo Matthews" account was used between May 5 and May 7, 2026, to amplify a falsified "dead man's switch" post into the Michigan Missing Persons Alerts Facebook group (approximately 1,700 members), to comment harassingly on Defendant's witness Ann Helgren's public posts, and to tie fabricated GPS coordinates to a real fire incident reported on Mlive.com. The "Sherri Adair" and "Jenn Reede" accounts were used on March 30-31, 2026, to direct false-criminal-allegation accusations at Ms. Helgren and to make location-specific assertions about Defendant's whereabouts that were knowable only from the AirTag surveillance dataset described at §III.E above. The "Sherri Adair" account was publicly identified on March 31, 2026 by Ms. Helgren on Facebook as operating under a Plaintiff/Counter-Defendant alias incorporating her former and reverted-to surname ("Blair").

f. Gmail account ecigaretteslut@gmail.com, operating under the display name "Angeline M," which on the factual record before the Court was used on May 9, 2026, to send two harassment emails to Defendant's witness Ann Helgren developing the narrative that "Conrad died horrifically in fire, Annie is responsible." The "Angeline" display name corresponds to the first name of Ms. Helgren's daughter, indicating attacker knowledge of family identifiers.

g. Signal Messenger account associated with phone number(s) under Plaintiff/Counter-Defendant's control.

h. Additional cross-platform accounts that have surfaced in the factual record and may surface during discovery.

23. Each of the accounts in ¶22 above is susceptible to immediate spoliation by the account holder. Deletion of tweets, deletion of DMs, deletion of Facebook posts and group memberships, deletion of email content, deactivation of accounts, and re-routing of recovery email or phone are all operations that can be effected within minutes from any internet-connected device. Once the operation is executed, the platform's retention policy in many cases erases the data permanently within a short post-deletion window. See X Corp. transparency reporting policies; Meta Platforms, Inc. retention policies; Apple, Inc. iCloud retention policies.

E. AirTag Cyberstalking Establishes Established Pattern of Surveillance and Evidentiary Manipulation

24. On March 2, 2026, Plaintiff/Counter-Defendant returned to Defendant a wallet that on information and belief contained an Apple AirTag tracking device paired to and registered on the iCloud account conrad@cannabytes.net. The AirTag tracked Defendant's location from March 2, 2026, forward.

25. The location-history dataset produced by that AirTag became the "telemetry" payload of the May 4, 2026, "Dead Man's Switch" Facebook post published from a compromised account in Defendant's name and naming five persons "responsible for [Defendant's] death," including witnesses Helgren and Jordan in this proceeding.

26. Eyewitness Ann Helgren has preserved the Apple "Items detected with you" notifications she received during the surveillance period on her personal iPhone, corroborating the AirTag chain of custody. The wallet containing the AirTag currently sits at a third-party residence whose address is the last log entry in the Dead Man's Switch post, namely the residence of DeAndre Connor.

27. The AirTag pairing records, the AirTag location-history records, and the iCloud login records on the conrad@cannabytes.net account are records held by Apple, Inc. Each of those record categories is preservable by subpoena to Apple, but each is also alterable or terminable by the account-holding party acting through the iCloud control panel. Re-pairing, deletion, deactivation, or account-credential change at any time terminates further authoritative record creation and may, depending on the operation, destroy retrospective records as well.

F. Sockpuppet Network Coordination Evidence is Time-Limited

28. On May 8, 2026, public-record Twitter scrape evidence captured a broadcast tweet posted by sockpuppet account @spuntpatrol bearing tweet identifier 2052837253408280726, posted at 19:45:18 UTC on May 8, 2026, with URL field expanded to a Facebook profile under Defendant's name. The broadcast tweet structure auto-populates the @-mention chain of all participants in the conversation. The conversation includes @KiwiFarmsDotNet (numeric user identifier 1397654962742644736), placing the official Kiwi Farms Twitter account in the upstream broadcast structure.
29. Three reply tweets to the broadcast (tweet identifiers 2052873275735253491 from @BiancaWestfall on May 8, 2026; 2053019730819314068 from @lordofsinatra on May 9, 2026; and 2053054715122888881 from @spuntpatrol on May 9, 2026) each carry @KiwiFarmsDotNet in their user_mentions entities. The "He's dead." reply by @spuntpatrol exploited what the public record shows to have been a third-party user's good-faith confusion as the setup line.
30. The reply-tweet chain is currently in the X platform record. It will remain there only so long as Plaintiff/Counter-Defendant does not delete @spuntpatrol or delete the underlying tweets. Once deleted, the chain is recoverable only by subpoena to X Corp., and only within the platform's retention window for deleted content.

G. Coordinated Account Operation Documented in Public-Record Twitter Scrape Evidence

31. On May 12, 2026, Defendant captured public-record Twitter scrape datasets covering the X accounts @adezero, @rosebuttcheeks, @spuntpatrol, @JustCallMeJoeP, and the conversation tree of the dead-man's-switch broadcast tweet identified at ¶28 above. The captures were performed via the Apify platform tweet-scraper actor and produced timestamped JSON datasets aggregating approximately 6,000 unique tweets across the targeted accounts. Each dataset includes complete metadata fields (tweet identifiers, conversation identifiers, in-reply-to identifiers, timestamps, source application, user identifiers, and user_mentions entities) as those fields are exposed by the X public API. The datasets are preserved as documentary evidence (the "May 12, 2026 Scrape Evidence"). The cryptographic integrity of each of the eighteen JSON files comprising the May 12, 2026 Scrape Evidence is documented in Defendant's Chain of Custody Supplement filed contemporaneously herewith, which lists each file by name, captured size in bytes, and SHA-256 cryptographic hash, totaling approximately 114 megabytes of byte-for-byte preserved capture data. The relevant findings from the May 12, 2026 Scrape Evidence are summarized at ¶¶32 through 35 below.
32. The May 12, 2026 Scrape Evidence captures a thread structure on @adezero conversation identifier 2043052376794276350 that, on its face, establishes single-operator control of the @rosebuttcheeks account by Plaintiff/Counter-Defendant:
 - a. On April 11, 2026 at 19:43:39 UTC, @adezero (Plaintiff/Counter-Defendant's verified primary X account) posted the original message "I am hurting so bad today" as tweet identifier 2043052376794276350.
 - b. On April 20, 2026 at 21:00:41 UTC, @rosebuttcheeks (display name "Rosemary," account created December 26, 2020, 63 followers, anime/wrestling-themed) posted the reply "Are you okay?" as tweet identifier 2046333254677012694, with in-reply-to identifier 2043052376794276350.
 - c. On April 25, 2026 at 09:19:00 UTC, fourteen days after the original @adezero post and without any intervening response from @adezero to @rosebuttcheeks, the @rosebuttcheeks account posted the reply "???" as tweet identifier 2047968608601432411. The in-reply-to-username field on this tweet is @rosebuttcheeks. The @rosebuttcheeks account replied to its own prior message rather than to @adezero.
 - d. The most parsimonious explanation for an account replying with a follow-up "???" to its own unanswered concern message about a stranger's emotional state, fourteen days later, is that the operator of @rosebuttcheeks is also the operator of @adezero and momentarily forgot, at the time of typing the April 25 reply, that no response from @adezero existed because she had not yet typed one. The complete conversation graph (root tweet, both replies, and metadata) is preserved in the May 12, 2026 Scrape Evidence.

33. The May 12, 2026 Scrape Evidence further captures 71 documented public-record interactions between @adezero and the eleven X accounts identified at ¶22(d) above as sockpuppets on Defendant's direct personal knowledge, including @adezero-@AllysonClermont (29 interactions), @adezero-@alg0queen (15 interactions), @adezero-@LeighCheri_ (7 interactions), @adezero-@4chantress (6 interactions), @adezero-@p1ratech (6 interactions), and @adezero-@spuntpatrol (4 interactions in addition to the May 8, 2026 broadcast at ¶28). The captured interactions include intimate-register communications, in-joke exchanges, content amplification through retweet, and coordination in conversation threads addressed to federal-court parties (@USDCMIED, @USAO_MIE, @TheJusticeDept). Each interaction is independently documentable through X Corp.'s subpoena-responsive records.
34. The May 12, 2026 Scrape Evidence captures the timeline of an additional X account, @JustCallMeJoeP (display name "Joe Prich," account created June 23, 2025, location Austin, Texas, X Blue verified), operating in documented coordination with @adezero:
- a. On January 8, 2026, @JustCallMeJoeP began retweeting @adezero content concerning Defendant's then-pending federal Bivens litigation, including retweets amplifying claims about Defendant's medical care, claims about U.S. Attorney conduct, and content under the framing "If something happens to me, if I disappear, please look into..." (January 13, 2026 retweet), a narrative arc that anticipates and prefigures the May 4, 2026 Dead Man's Switch post at §III.E above by approximately four months.
 - b. On March 24, 2026, @adezero posted in her own voice a tweet identifying @JustCallMeJoeP as the source of advice directing Plaintiff/Counter-Defendant to drop her married surname. That tweet reads in pertinent part: "I literally just digitally decapitated myself because @JustCallMeJoeP kept telling me to drop the 'dead weight' (last name)." The "last name" referenced is the Rockenhaus surname.
 - c. The May 12, 2026 Scrape Evidence captures @JustCallMeJoeP's pinned X tweet (X tweet identifier 2052766745820033466) and its complete reply thread, including a reply from @spuntpatrol posted on May 8, 2026 at 19:47:20 UTC asking @JustCallMeJoeP "Do you know where Ade is??". The @spuntpatrol-to-@JustCallMeJoeP communication is timestamped exactly two minutes after the @spuntpatrol broadcast tweet identified at ¶28 above and therefore occurred within the same operational window as the dead-man's-switch broadcast.
 - d. On May 10, 2026 at 00:50:16 UTC, within approximately the same window during which Plaintiff/Counter-Defendant was vacating the marital residence at 26695 Ross Drive (¶¶11-12 above), @JustCallMeJoeP replied to @spuntpatrol in the same thread: "No I'm worried fucking sick about her, tbh." On the captured operational profile of @JustCallMeJoeP (740 tweets across the relevant window, comprising 238 originals, 91 quote tweets, 409 retweets, and 2 replies including this one), this reply represents one of only two non-self direct replies from the @JustCallMeJoeP account in its entire scraped history. The exception-to-pattern character of the reply, in the temporal context of the marital-residence vacation, establishes the @JustCallMeJoeP account as operating in active coordination with Plaintiff/Counter-Defendant during the spoliation-risk window.
35. The May 12 and May 13, 2026 Scrape Evidence further documents cross-account coordination among the sockpuppet accounts identified at ¶22(d) above, and the additional accounts identified at §III.G, independent of @adezero. The cross-account coordination is captured in the following specific patterns:
- a. On March 28, 2026, the sockpuppet account @phatadvert retweeted six successive tweets in the @adezero / @JustCallMeJoeP intimate-banter conversation, with two retweets spaced three seconds apart at 03:58:54 and 03:58:57 UTC and two further retweets spaced seven seconds apart at 14:57:59 and 14:58:06 UTC. The retweeted content includes @adezero's tweet to @JustCallMeJoeP reading: "@JustCallMeJoeP is my rack still hot to you or." That content is of a character that arms-length supporter amplification cannot account for. The three-second and seven-second retweet intervals on a retweet sequence that spans both sides of a two-account conversation are operationally consistent with a single operator amplifying her own conversation from a third account.
 - b. On March 18, 2026, five sockpuppet accounts (@picklepickleg, @AllysonClermont, @blackjakkkk,

@PunkyHomegirl, and @LuceMargarita) ceased producing public content on the same day or within a twenty-four-hour window. The May 12, 2026 Scrape Evidence does not capture any cross-account farewell, transition, or notification messages among those five accounts on the shutdown date. Five independent users separately losing interest in the X platform would not produce a same-day silence cluster of this character; coordinated single-operator shutdown is the most parsimonious explanation.

c. Additional cross-sockpuppet interactions captured in the May 12, 2026 Scrape Evidence include @spuntpatrol ↔ @blackjakkkk (eight captured interactions), @spuntpatrol ↔ @LuceMargarita (seven), @spuntpatrol ↔ @phatadvert (five), @JustCallMeJoeP ↔ @phatadvert (nine), and @LeighCheri_ ↔ @alg0queen (two). Each cross-sockpuppet pair is documented through third-party-observable X public-record metadata (user_mentions entities, in-reply-to fields, and retweet records) and is independently subpoena-confirmable through X Corp.'s records.

36. The combined documentary record at ¶¶31 through 35 above establishes that @rosebuttcheeks, @JustCallMeJoeP, @spuntpatrol, @adezero, and the eleven additional sockpuppet accounts at ¶22(d) operate as a coordinated account architecture under common control or close coordination with Plaintiff/Counter-Defendant. Content material to the deemed-admitted Counterclaim is distributed across all of those accounts. Spoliation by any one of those accounts impairs the documentary record. The records subject to spoliation include but are not limited to login session histories, source IP addresses, direct-message records among the accounts, recovery-information records that would establish common control, and the content of posts, replies, retweets, and quote tweets that document the coordination pattern. Each of those record categories is preservable by subpoena to X Corp. but is subject to alteration or termination by the operating party from any internet-connected device.

H. Coordinated Operational Withdrawal of the Sockpuppet Network

37. The May 12, 2026 Scrape Evidence further establishes a coordinated multi-wave pattern of activity-cessation across the eleven X sockpuppet accounts identified at ¶22(d) above. Last-activity timestamps captured for those accounts are as follows:

a. Wave one, March 17 to March 18, 2026: Five accounts (@picklepickleg on March 17; @AllysonClermont, @blackjakkkk, @PunkyHomegirl, and @LuceMargarita all on March 18) ceased posting on or within twenty-four hours of each other.

b. Wave two, March 20 to March 29, 2026: Three accounts (@LeighCheri_, @alg0queen, @phatadvert) ceased posting in the eleven-day window following wave one.

c. Wave three, April 1 to April 5, 2026: Two accounts (@p1ratech and @4chantress) ceased posting in the four-day window approximately two weeks after wave one.

d. The cessation of activity across eleven supposedly independent accounts within a nineteen-day window, including a same-day cessation across five accounts, is not consistent with eleven separate users independently losing interest in the X platform. The pattern is consistent with coordinated operator-side dormancy of accounts in preparation for litigation-driven scrutiny. The cessation waves preceded the April 9, 2026 filing of Plaintiff/Counter-Defendant's Verified Complaint for Divorce in this proceeding and continued through the April 15, 2026 filing of Defendant's Counterclaim alleging the sockpuppet operation.

38. Plaintiff/Counter-Defendant's verified primary X account @adezero, which on the months preceding April 11, 2026 had been a high-volume posting account producing on the captured data approximately 438 tweets in March 2026 alone, ceased posting on April 11, 2026 at 19:43:39 UTC. The final captured tweet was the message "I am hurting so bad today." As of the filing of this Motion, the @adezero account remains active on the X platform but has produced no new public content for more than thirty days. The operational silence on the verified main account, coupled with the contemporaneous coordinated cessation across the sockpuppet network described at ¶36 above, establishes operational capacity and willingness on the part of Plaintiff/Counter-Defendant to wind down public-facing accounts on a litigation-driven timeline. The accounts that remain active for new content as of the filing of this Motion are

@spuntpatrol, @rosebuttcheeks, and @JustCallMeJoeP, the three accounts identified at §III.G above as operational coordinators.

I. The Deemed-Admitted Counterclaim Creates Maximum Spoliation Incentive

39. The May 12, 2026 entry of default on the Counterclaim renders the factual averments of the Counterclaim conclusively admitted as to liability. *Wood v. Detroit Auto. Inter-Ins. Exch.*, 413 Mich. 573, 582 (1982). The remaining contested matter on the Counterclaim is the quantum of damages and the precise scope of equitable relief, which will be determined at the default-judgment hearing under MCR 2.603(B)(3).
40. Plaintiff/Counter-Defendant accordingly stands at the moment of maximum incentive to destroy or impair the evidence on which damages and equitable relief depend. That incentive applies with particular force to (a) the electronic records that document the conversion mechanism, (b) the sockpuppet-network records that document the deemed-admitted harassment pattern, (c) the physical devices in her possession that contain Cannabytes, LLC business records, and (d) the AirTag-related records that document the surveillance vector.
41. The combined factual record at §§III.A through III.I demonstrates not only the abstract possibility of spoliation but a specific pattern of conduct, on a specific timeline, with a specific identified conduit, and a specific account inventory, sufficient to establish imminent and irreparable risk warranting injunctive relief.

IV. LEGAL STANDARD FOR EMERGENCY PRESERVATION AND ANTI-SPOLIATION RELIEF

A. Injunctive-Relief Authority Under MCR 3.310

42. MCR 3.310(B)(1) authorizes the Court, on a showing of facts demonstrating that immediate and irreparable injury, loss, or damage will result before the adverse party can be heard in opposition, to grant a temporary restraining order. MCR 3.310(A) authorizes preliminary injunctive relief on hearing.
43. The Michigan Supreme Court's four-factor test for preliminary injunctive relief, set forth in *Pontiac Fire Fighters Union Local 376 v. City of Pontiac*, 482 Mich. 1, 8 (2008), is: (1) the likelihood that the moving party will prevail on the merits, (2) the danger that the moving party will suffer irreparable injury if the injunction is not issued, (3) the risk that the moving party would be harmed more by the absence of an injunction than the opposing party would be by the granting of the relief, and (4) the harm to the public interest if the injunction is issued.

B. Preservation-Order Authority Under MCR 2.310 and the Court's Inherent Power

44. MCR 2.310 authorizes the Court to enter orders necessary to preserve documents and tangible things material to discovery. MCR 2.302(B)(6), Michigan's electronically stored information ("ESI") preservation provision, further provides for preservation of electronically stored information and recognizes the unique vulnerabilities of ESI to alteration and destruction. The duty to preserve evidence material to litigation arises independently of any court order at the point at which a party reasonably anticipates litigation. *Brenner v. Kolk*, 226 Mich. App. 149, 162 (1997).
45. Michigan courts possess inherent authority to enter orders necessary to preserve evidence and prevent destruction. *Brenner v. Kolk*, 226 Mich. App. at 161; *Hamann v. Ridge Tool Co.*, 213 Mich. App. 252, 254 (1995).

C. The Spoliation Doctrine and the Adverse-Inference Framework

46. The spoliation doctrine in Michigan, articulated in *Teel v. Meredith*, 284 Mich. App. 412, 420 (2009), provides that when a party destroys, alters, conceals, or fails to preserve evidence material to litigation, the trial court may impose sanctions including but not limited to an adverse inference instruction, exclusion of evidence, or other relief commensurate with the prejudice. The trial court has broad discretion to fashion the appropriate sanction. *Brenner*, 226 Mich. App. at 160.

47. The availability of post-hoc spoliation sanctions does not foreclose the propriety of prospective preservation relief. The two remedies operate at different stages and address different harms: the prospective preservation order seeks to prevent the spoliation from occurring; the post-hoc spoliation sanction seeks to remediate the prejudice from spoliation that has already occurred. Where, as here, the moving party can demonstrate present risk of imminent spoliation, the prospective remedy is both available and preferable.

V. APPLICATION OF THE *PONTIAC FIRE FIGHTERS* FOUR-FACTOR TEST

A. Likelihood of Success on the Merits

48. The May 12, 2026 entry of default establishes liability on the Counterclaim conclusively. *Wood*, 413 Mich. at 582. The remaining merits question on the Counterclaim is the quantum of damages, which Defendant has supported with a 21-page sworn Affidavit packet inclusive of an Index of Exhibits, the Social Security Administration demand letter as Exhibit A, and the Department of Veterans Affairs Payment History Inquiry with summary table as Exhibit B, filed contemporaneously with the Motion for Default Judgment on May 12, 2026. The likelihood of success on the merits is therefore not merely high but established.

B. Irreparable Injury

49. Electronic evidence subject to spoliation by single-user operation at a platform with limited retention is, as a matter of doctrine, uniquely susceptible to irreparable destruction. *See Pontiac Fire Fighters*, 482 Mich. at 9 (irreparable harm requires "an injury that cannot be adequately compensated by damages or that cannot be redressed by a court of law"). Where the records that document the deemed-admitted misconduct can be terminated by their operator at any moment, the harm from destruction cannot be redressed; the records do not exist anywhere else. The risk in this case is not theoretical. The factual record at §III.G above documents Plaintiff/Counter-Defendant's operation of an integrated multi-account architecture spanning the verified primary account @adezero, the eleven sockpuppet accounts identified at ¶22(d), the additional accounts @rosebuttcheeks and @JustCallMeJoeP, and associated Facebook accounts at ¶22(e), each independently capable of being deactivated, suspended, or content-purged from a single internet-connected device. The factual record at §III.H above documents that eleven of those accounts have already ceased producing public content in a coordinated multi-wave pattern between March 17 and April 11, 2026, and that the verified primary @adezero account has produced no new public content for over thirty days. The combined predicate establishes that Plaintiff/Counter-Defendant possesses both the operational capacity to effect spoliation across the integrated account architecture and the demonstrated pattern of exercising that capacity on a litigation-aligned timeline.
50. The harm is additionally irreparable because the deemed-admitted record incorporates conduct (sockpuppet operation, witness intimidation, cyberstalking) for which the documentary substrate is exclusively held in third-party platform records that the spoliating party can terminate. Subpoenas to third-party platforms remediate the loss only to the extent the platform's retention window has not closed. Once closed, subpoenas return nothing.
51. The factual predicate at §§III.A through III.I demonstrates that Plaintiff/Counter-Defendant has both the means and the motive to effect the spoliation that this Motion seeks to prevent, and that she has done so on a timeline incompatible with the speed of ordinary motion practice.

C. Balance of Harms

52. The order requested by this Motion would prohibit Plaintiff/Counter-Defendant from destroying, altering, deleting, or transferring evidence she does not have a legitimate interest in destroying, altering, deleting, or transferring. A party has no cognizable interest in destroying evidence material to litigation in which she is a party; her duty is the opposite. *Brenner*, 226 Mich. App. at 162. The order accordingly imposes no cognizable harm on her at all.

53. By contrast, the harm to Defendant from the absence of the order is, as set forth at §V.B, irreparable. The balance of harms is wholly one-sided.

D. Public Interest

54. The public interest in the integrity of the judicial process and the preservation of evidence material to a pending civil proceeding is well-established and favors the requested order. *See Brenner*, 226 Mich. App. at 161. The public interest in preventing the use of court-channel concealment as a tactical advantage by litigants who have permitted default to enter against them weighs heavily in favor of preservation.

VI. SCOPE OF RELIEF REQUESTED

55. Defendant/Counter-Plaintiff requests entry of a Preservation Order and Order Prohibiting Spoliation of Evidence directed to Plaintiff/Counter-Defendant Adrienne Marjorie Rockenhaus, her agents, servants, employees, attorneys, and all persons acting in concert or participation with her with notice of the Order, commanding the following:

a. **Categorical Preservation.** That Plaintiff/Counter-Defendant preserve, in their current form and without alteration, all of the following categories of evidence:

(i) All electronic content, metadata, account-settings records, recovery information, login-session histories, and connected-device histories associated with each of the email accounts `adrienne@cannabytes.net`, `adrienne@rockenhaus.com`, and `conrad@cannabytes.net`;

(ii) All electronic content, including but not limited to posts, replies, retweets, quote tweets, deleted content within the platform's recovery window, direct messages, follower and following lists, and connected-app records, associated with each of the following X (formerly Twitter) accounts: `@adezero`, `@spuntpatrol`, `@LeighCheri_`, `@phatadvert`, `@AllysonClermont`, `@4chantress`, `@alg0queen`, `@LuceMargarita`, `@blackjakkkk`, `@PunkyHomegirl`, `@picklepickleg`, `@p1ratech`, `@rosebuttcheeks`, `@JustCallMeJoeP`, and any additional account operationally controlled by, coordinated with, or systematically amplifying content from Plaintiff/Counter-Defendant whether or not currently identified;

(iii) All electronic content, including posts, comments, messages, group memberships, and account-settings records, associated with the Facebook accounts operating under the names "Demi-Jo Matthews," "Sherri Adair," and "Jenn Reede," and with any other Facebook account operationally controlled by Plaintiff/Counter-Defendant;

(iv) All electronic content, including emails sent and received, drafts, attachments, contacts, and account-settings records, associated with the Gmail account `ecigaretteslut@gmail.com` operating under the display name "Angeline M";

(v) All electronic content associated with any Signal Messenger account, Threads account, Discord account, or other messaging-platform account operationally controlled by Plaintiff/Counter-Defendant;

(vi) All Apple iCloud records associated with the `conrad@cannabytes.net` account, including but not limited to AirTag pairing records, AirTag location-history records, iMessage records, Find My records, and account-activity logs;

(vii) All electronic and documentary records of Cannabytes, LLC, including but not limited to bank records, transaction records, customer records, vendor records, tax filings, and operational communications, regardless of medium;

(viii) All electronic and documentary records related to Plaintiff/Counter-Defendant's receipt and disposition of Defendant's VA Disability Compensation payments and Social Security Disability Insurance payments from September 2025 through the date of this Order, including but not limited to bank statements, transaction records, and `id.me`, `va.gov`, and `ssa.gov` account-access records to the extent any have been preserved by Plaintiff/Counter-Defendant. The preservation obligation applies with particular specificity to records of the USAA Federal Savings Bank account ending in -3818 (routing number 314-074-269), at

which the diverted federally-protected benefit payments at issue in the Counterclaim were concentrated, and to records of the closed SoFi Bank joint account ending in -1334 (routing number 031-101-334) to the extent any such records are preserved or recoverable by Plaintiff/Counter-Defendant;

(ix) The personal property in Plaintiff/Counter-Defendant's possession that is the subject of Defendant's pending Motion for Return of Personal Property, including but not limited to the Apple Mac Mini, Apple iPhone 16e, Apple iPhone 15 Pro Max, Apple iPad, Apple Watch, and Defendant's wallet, in their current state and condition, without further alteration, modification, factory reset, password change, or data deletion; and

(x) All trust-distribution records, trust-account statements, and trustee communications related to the trust from which Plaintiff/Counter-Defendant receives monthly distributions.

b. Prohibition on Specific Conduct. That Plaintiff/Counter-Defendant be enjoined and prohibited from:

(i) Deleting, altering, modifying, or causing the deletion, alteration, or modification of any of the categories of evidence enumerated at §VI(a) above;

(ii) Deactivating or causing the deactivation of any of the accounts enumerated at §VI(a) above;

(iii) Changing, or causing the change of, the recovery email, recovery phone number, or other account-recovery information for any of the accounts enumerated at §VI(a) above;

(iv) Transferring, gifting, conveying, encumbering, or otherwise alienating any of the personal property enumerated at §VI(a)(ix) above; and

(v) Performing or causing to be performed any factory reset, secure-erase, account-logout-with-data-removal, or remote-wipe operation on any of the personal-property devices enumerated at §VI(a)(ix) above; and

(vi) Deactivating or causing the deactivation of, or terminating the X-Corp.-side reactivation window of, any X (formerly Twitter) account identified at §VI(a)(ii) above, including without limitation the @adezero, @spuntpatrol, @rosebuttcheeks, and @JustCallMeJoeP accounts.

c. Affirmative Disclosure of Current Whereabouts. That Plaintiff/Counter-Defendant be ordered to disclose to the Court, ex parte and under seal if the Court deems appropriate, her current physical address, mailing address, and emergency-contact information, for the limited purpose of permitting the Court and its administrative personnel to communicate with her on the record of this proceeding and to ensure proper service of subsequent orders entered herein.

d. Acknowledgment Requirement. That Plaintiff/Counter-Defendant be required to file with the Court, within seven days of service of the entered Order, a written acknowledgment under oath that she has received the Order, has read and understood it, and has not destroyed, altered, transferred, or impaired any of the evidence enumerated at §VI(a) within the 30-day period preceding the entry of the Order; and that to the extent any such destruction, alteration, transfer, or impairment has occurred within that 30-day window, identifying with specificity the category, the date, and the nature of the operation.

e. Penalty for Non-Compliance. That the Order recite that violation of its terms may subject Plaintiff/Counter-Defendant to (i) civil contempt under MCL 600.1701; (ii) an adverse-inference instruction at any subsequent damages or equitable-relief hearing pursuant to *Teel v. Meredith*, 284 Mich. App. 412 (2009); (iii) exclusion of evidence she might otherwise be permitted to offer; (iv) monetary sanctions including reasonable attorney fees and costs Defendant incurs as a result of the violation; and (v) such further relief as the Court deems just and equitable.

f. Expedited Hearing. Defendant requests that the Court hear this Motion on an expedited basis, with notice shortened pursuant to MCR 2.119(C)(4) to the extent ordinarily required, given that the irreparable harm sought to be prevented is occurring on a timeline that ordinary 28-day notice practice cannot accommodate.

g. Ex Parte Component if Justified by the Record. To the extent the Court determines that the §III factual predicate is sufficient to justify ex parte relief under MCR 3.310(B)(1)(a), Defendant requests entry of an ex

parte preservation order of the scope set forth at §VI(a) and §VI(b) above, pending hearing on the balance of relief requested.

VII. BOND

56. Defendant requests that the Court waive the security requirement of MCR 3.310(D) on the basis that the order sought imposes no cognizable harm on Plaintiff/Counter-Defendant (as set forth at §V.C above), and that Defendant proceeds in this matter pro se on a financial record that includes the very benefits diversion at issue in the Counterclaim. See MCR 3.310(D)(1).

VIII. RELIEF REQUESTED

WHEREFORE, Defendant/Counter-Plaintiff Conrad Alan Rockenhaus respectfully requests that this Honorable Court enter an Order:

57. Granting this Emergency Motion;
58. Scheduling expedited hearing on the relief requested at §VI(a) through §VI(e) above;
59. Entering, on an ex parte basis if the record so warrants, the preservation and prohibition relief requested at §VI(a) and §VI(b) above pending expedited hearing;
60. Ordering the affirmative-disclosure, acknowledgment, and penalty provisions requested at §VI(c), §VI(d), and §VI(e) above;
61. Waiving the security requirement of MCR 3.310(D); and
62. Granting such other and further relief as this Court deems just and equitable.

Respectfully submitted,

/s/ Conrad A. Rockenhaus

Conrad Alan Rockenhaus, Defendant/Counter-Plaintiff Pro Se

1690 Brookfield Drive

Ann Arbor, Michigan 48103

(254) 340-7910

conrad@rockenhaus.net

Dated: May 12, 2026

VERIFICATION

I, Conrad Alan Rockenhaus, declare under penalty of perjury that I have read the foregoing Defendant/Counter-Plaintiff's Emergency Motion for Preservation Order and Order Prohibiting Spoliation of Evidence, that the factual statements contained in §I, §II, §III, and §IV thereof are true and correct to the best of my knowledge, information, and belief, and that the matters stated upon information and belief are believed to be true.

/s/ Conrad A. Rockenhaus

Conrad Alan Rockenhaus

Dated: May 12, 2026

CERTIFICATE OF SERVICE

I, Conrad Alan Rockenhaus, hereby certify under MCR 1.109(D)(3) that on May 12, 2026, I served a true and correct copy of the foregoing Defendant/Counter-Plaintiff's Emergency Motion for Preservation Order and Order Prohibiting Spoliation of Evidence upon counsel of record for Plaintiff/Counter-Defendant by the following methods:

By electronic mail to:

Lisa Baker, Esq. (P82555)
Aldrich Legal Services, PLLC
lisabaker@aldrichlegalservices.com

Kristen Sinkiewicz
Aldrich Legal Services, PLLC
kris@aldrichlegalservices.com

By First-Class U.S. Mail, postage prepaid, addressed to:

Lisa Baker, Esq. (P82555)
Aldrich Legal Services, PLLC
276 South Union Street
Plymouth, Michigan 48170

The undersigned declares that the foregoing statements are true to the best of his knowledge, information, and belief.

/s/ Conrad A. Rockenhaus

Conrad Alan Rockenhaus

Dated: May 12, 2026